SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
RICHMOND, CA
DEPARTMENT 14, RICHMOND
HEARING DATE: 01/06/2026

ALL APPEARANCES WILL BE BY ZOOM

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances will be by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested and include specification to be argued.

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Law & Motion

1. 9:00 AM CASE NUMBER: L23-04027
CASE NAME: MCT GROUP VS. DAVID MARTINEZ, JR.
***HEARING ON MOTION IN RE: VACATE DEFAULT AND DEFAULT JUDGMENT**
FILED BY: MARTINEZ, DAVID, JR.
****TENTATIVE RULING:****

Defendant and Judgment Debtor David Martinez Jr. ("Defendant") filed a Motion to Vacate Default and Default Judgment on November 18, 2025 ("Motion to Set Aside Default"). The Motion to Set Aside Default was set for hearing on January 6, 2026. The motion is opposed.

Background

Plaintiff and Judgment creditor MCT Group ("Plaintiff") filed a Complaint on July 31, 2023.

A Proof of Service of Summons was filed May 13, 2024 (the "5/13/24 POSS"). The 5/2/16 POSS reflects substitute service on Defendant on January 17, 2024 at an address of 133 Hemlock Ct, Hercules, California (the "133 Hemlock Court Address"), by delivery to "'JANE DOE' - CO-OCCUPANT" Jane Doe. 5/13/24 POSS, ¶¶3-5. The service was done by a registered process server. *Id*. at ¶7.

A default was entered against Defendant on May 13, 2024 (the "Default"). Thereafter, a request for entry of a default judgment was submitted to the Court and a default judgment was entered on August 21, 2024 (the "Default Judgment").

Defendant's motion is supported by Defendant's Declaration filed November 18, 2025 as part of the Motion to Set Aside Default (the “Supporting Declaration”).

Plaintiff filed an opposition to Defendant’s Motion to Set Aside Default on December 10, 2025, including an opposition Declaration of Peter Christopher Bulpitt (“Opposition Declaration”).

<u>Analysis</u>

1. Lack of Actual Notice of the Pending Lawsuit.

Defendant seeks relief under Code of Civil Procedure section 473.5.

Code of Civil Procedure section 473.5 allows a party to bring a motion to set aside a default entered against the party where “service of a summons has not resulted in actual notice to a party in time to defend the action.” Code Civ. Proc. § 473.5(a). The motion “shall be accompanied by an affidavit showing under oath that the party’s lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect.” *Id*. § 473.5(b).

Defendant cannot, at this stage, obtain relief under Code of Civil Procedure section 473.5 because such relief is time barred. There are certain deadlines for a defendant to bring a motion to set aside a default under Code of Civil Procedure section 473.5. See Code Civ. Proc. § 473.5(a) (“The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered.”).

Notice of entry of the Default Judgment was served on Defendant at the 133 Hemlock Court Address on October 17, 2024:

3. The *Notice of Entry of Judgment or Order* was mailed:
   a. on *(date)*: 10/17/2024
   b. from *(city and state)*: Torrance, CA

4. The envelope was addressed and mailed as follows:

a. Name of person served: David Martinez, Jr., et al.	c. Name of person served:
Street address: 133 Hemlock Court	Street address:
City: Hercules	City:
State and zip code: CA 94547	State and zip code:

See Notice of Entry of Judgment filed October 17, 2024, ¶4. 180 days after service on Defendant was April 15, 2025.

Defendant’s Motion to Set Aside Default was not filed until November 18, 2025 and was then served on November 20, 2025. It is evident that by any possible calculation, the time has long passed for Defendant to obtain relief under Code of Civil Procedure section 473.5.

Of course, this turns on the conclusion that the 133 Hemlock Court Address was a valid mailing address for service of court papers on Defendant at the time. Having considered all of the evidence, the Court finds that 133 Hemlock Court Address was a valid mailing address for service on Defendant at the time, for the reasons discussed further below.

Even if the relief sought was not time barred, the Court would deny it. The service was done by a registered process server. See 5/2/16 POSS at ¶7. This raises a presumption of valid service. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 (the filing of a proof of service creates a rebuttable presumption that the service was proper).

Having considered all of the evidence before the Court, the Court does not conclude that Defendant has rebutted the presumption of valid service.

Defendant asserts that he "was never served with the summons and complaint" because he "did not reside at that address and had no contact with" the 133 Hemlock Court Address. See Supporting Declaration, ¶¶2-4. He further asserts that he does not know "Jane Doe" and "never received actual notice of this lawsuit until after default judgment." *Id*. at ¶¶5-6.

The Court does not find these statements credible.

The Opposition Declaration proffers a letter written to plaintiff with a date of March 1, 2024. See Opposition Declaration, ¶4 and Exhibits. That was a little more than a month after the service was done. The letter included copy of Defendant's Driver's License which reflected the 133 Hemlock Court Address. *Id*.

Although the letter makes reference to a PO Box ending –71 in Concord, CA (the "Concord PO Box"), nothing in the letter states that Defendant was not residing at the 133 Hemlock Court Address at the time. Moreover, the letter tends to show that Defendant had actual notice by that time that he was being sued by MCT Group, as he offers no explanation why, suddenly, he makes demands for information to "validate" the "claim."

Plaintiff's evidence also reflects that it sought confirmation from the US Postal Service, both before and after the time of service, as to the physical address associated with the Concord PO Box. See Opposition Declaration, ¶6 and Exhibits. Both times, the Concord PO Box was associated with the 133 Hemlock Court Address. *Id*.

Defendant's narrowly tailored assertions about having "no contact with" the 133 Hemlock Court Address are belied by his clear association with the address by virtue of actively using the Concord PO Box tied to that address and, at some point, having lived there as shown by his California Driver's License and other evidence. Defendant's credibility is undermined by his failure to affirmatively describe the nature and extent of his association with the 133 Hemlock Court Address, both historically and at the time of the service. Frankly, the totality of the evidence smacks of gamesmanship on Defendant's part.

*The moving papers do not establish that any longer time limits apply here, such as Civil Code section 1788.61 which provides that "[n]otwithstanding Section 473.5 of the Code of Civil Procedure, if service of a summons has not resulted in actual notice to a person in time to defend an action brought by a debt buyer and a default or default judgment has been entered against the person in the action, the person may serve and file a notice of motion and motion to set aside the default or default judgment and for leave to defend the action." Civ. Code § 1788.61(a)(1). This statute contains potentially longer outside time limits. See *id*. at § 1788.61(a)(2) [relief must be sought within a reasonable time, but in no event exceeding the earlier of: (a) six years after entry of the default or default judgment against the person or (b) one hundred eighty days of the first actual notice of the action]. These longer time periods only apply in cases involving a plaintiff "debt buyer." Here, Plaintiff's suit expressly alleged that is was not a debt buyer within the meaning of the statute. See Complaint, ¶3. But, even if these time periods did apply, the relief would be barred by Defendant's having failed to seek relief within 180 days from the first actual notice which the Court finds was no later than the time of service of notice of entry of the Judgment to the 133 Hemlock Court Address in October 2024, such address the Court finds was actually associated with Defendant.

2. Defendant Fails to Establish that the Default Resulted from Mistake, Inadvertence, Surprise, or Excusable Neglect.

Defendant also seeks relief under Code of Civil Procedure section 473(b).

Under Code of Civil Procedure section 473(b), the Court may, in its discretion, relieve a party from a default judgment resulting from "his or her mistake, inadvertence, surprise, or excusable neglect." Code Civ. Proc., § 473(b); *Rivercourt Co. Ltd. v. Dyna-Tel, Inc.* (1996) 41 Cal.App.4th 1477, 1480 ("*Rivercourt*"). A motion seeking relief under section 473 is addressed to the sound discretion of the trial court. *Rivercourt*, *supra*, 41 Cal.App.4th at 1480. Neither mistake, inadvertence, nor neglect will warrant relief unless upon consideration of all of the evidence it is found to be excusable. *Conway v. Municipal Court* (1980) 107 Cal.App.3d 1009, 1017. The party seeking relief under section 473(b) bears the burden of establishing that the mistake, inadvertence, surprise or neglect was excusable. *Id*.

First, the evidence proffered by Defendant does not describe any specific mistake, inadvertence, surprise, or excusable neglect that led to the Default and/or Default Judgment. It simply asserts that no notice was received based on the service done. Therefore, there are no grounds for relief under Code of Civil Procedure section 473(b).

Second, even if grounds for relief under Code of Civil Procedure section 473(b) were shown, such relief is also barred by the passage of time.

Relief under Code of Civil Procedure section 473(b) must be brought within a reasonable time, but no later than six months after entry of the default judgment. Code Civ. Proc., § 473(b) (" Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken."); see CJER, *California Judges Benchbook: Civil Proceedings—After Trial* (2024) ("CJER Civ. Pro.—After Trial"), § 1.16.

Defendant failed to bring this motion within six months after entry of the Default Judgment.

3. Defendant Fails to Establish that the Default and Entry of Default Judgment Thereon Should be Set Aside as Void.

Lastly, to the extent the relief requested by Defendant is a request to vacate a judgment void for lack of service under Code of Civil Procedure section 473(d), the Court denies such relief.

The Court has authority to vacate a void judgment pursuant to Code of Civil Procedure section 473(d). See Code Civ. Proc. § 473(d) ("The court ... may, on motion of either party after notice to the other party, set aside any void judgment or order."); see also *Sindler v. Brennan* (2003) 105 Cal.App.4th 1350, 1353 [a judgment void on its face because rendered when the court lacked personal or subject matter jurisdiction or exceeded its jurisdiction in granting relief which the court had no power to grant is subject to collateral attack at any time and may be set aside under Code of Civil Procedure section 473, subdivision (d)].

In addition, a judgment may be set aside by a court if it has been established that extrinsic factors have prevented one party to the litigation from presenting their case. *In re Marriage of Park* (1980) 27 Cal.3d 337, 342. The grounds for such equitable relief are commonly stated as being extrinsic fraud or mistake. *Id*. Those terms are given a broad meaning and tend to encompass almost any set of extrinsic circumstances which deprive a party of a fair adversary hearing. *Id*.; see also *Aldabe v. Aldabe* (1962) 209 Cal.App.2d 453, 474 ("Fraud or mistake is extrinsic when it deprives the unsuccessful party of an opportunity to present his case to the court.") quoting *Westphal v. Westphal* (1942) 20 Cal.2d 393, 397. A party seeking relief under the court's equitable powers must satisfy the elements of a "stringent three-pronged test": (1) a satisfactory excuse for not presenting a defense, (2) a meritorious defense, and (3) diligence in seeking to set aside the default. *Kramer v. Traditional Escrow, Inc.* (2020) 56 Cal.App.5th 13, 29.

A motion to set aside a void default judgment may be filed at any time. See CJER Civ. Pro.—After Trial, § 1.82; see also *California Capital Ins. Co. v. Hoehn* (2024) 17 Cal.5th 207, 216.

For the reasons addressed at length above, the Court does not conclude that service of process on Defendant was void or somehow defective. Defendant has not rebutted the presumption of valid service and has not otherwise shown grounds for setting aside the Default Judgment under Section 473(d).

<u>Disposition</u>

The Court finds and orders as follows:

1. The Motion to Set Aside Default is DENIED.
2. The Court shall issue the order after hearing.

2. 9:00 AM CASE NUMBER: L23-05284
CASE NAME: WELLS FARGO BANK, N.A. VS. MELISSA URBANO

***HEARING ON MOTION IN RE: FOR ATTORNEY FEES AND OF NONAPPEARANCE**
FILED BY: WELLS FARGO BANK, N.A.
****TENTATIVE RULING:****

Plaintiff Wells Fargo Bank, N.A. ("Plaintiff") filed a Motion for Attorneys' Fees on October 23, 2025 (the "Attorneys' Fees Motion"). The Attorneys' Fees Motion was set for hearing on January 6, 2026. The motion is unopposed.

<u>Background</u>

A money judgment was entered against the defendant Melissa G Urbano ("Defendant") in the principal amount of $6,629.45, plus costs of $420.00. See Judgment by Court entered August 13, 2025 (the "Judgment"). The Judgment was entered pursuant to a ruling in Plaintiff's favor on a motion for judgment on the pleadings. See Order entered June 4, 2205.

Plaintiff now seeks an award of attorneys' fees by this post-judgment motion. The Attorneys' Fees Motion is supported by the Declaration of Pearse F. Early filed on October 23, 2025 (the "Supporting Declaration").

<u>Analysis</u>

Attorneys' fees, when authorized by contract, statute or law, are awardable as allowable costs of litigation pursuant to Code of Civil Procedure section 1032. Code Civ. Proc. §§ 1032 and 1033.5(a)(10); see CJER, *California Judges Benchbook: Civil Proceedings—Trial* (2025) ("CJER Civ. Pro.—Trial"), § 16.43. In an action to enforce a contract that authorizes an award of attorneys' fees to either party, the party prevailing on the contract is entitled to "reasonable" attorneys' fees. Civ. Code § 1717. Contractual attorneys' fees may be fixed by noticed motion. Rule 3.1702 of the California Rules of Court ("CRC"). In a limited jurisdiction civil case, such motion must generally be brought within 30 days after notice of entry of the judgment, unless a later deadline applies. CRC 3.1702(b)(1) ("A notice of motion to claim attorney's fees for services up to and including the rendition of judgment in the trial court … must be served and filed within the time for filing a notice of appeal … under rules 8.822 and 8.823 in a limited civil case."); see CRC 8.822 and 8.823; see also CJER Civ. Pro.—Trial, § 16.81.

Plaintiff's motion is timely. No notice of entry of the Judgment was given by the clerk of the Court, so the deadline would be 90 days after the entry of judgment on August 13, 2025, i.e. November 11, 2025. See CRC 8.8222(a)(1)(C) (deadline is "90 days after the entry of judgment" where no notice of entry of judgment is given). The Attorneys' Fees Motion was filed and served October 23, 2025

The Supporting Declaration references the parties' underlying contract which contains an attorneys' fees clause. Supporting Declaration, ¶3 and **Exhibit B**. Paragraph 21 states, in pertinent part:

> We may prevent further transactions and we may close your Account and other Wells Fargo Accounts. If your account is in default you agree to pay our collection

* * *

costs, attorney's fees, and court costs incurred in enforcing our rights under this agreement.

Consumer Credit Card Customer Agreement & Disclosure Statement, ¶21, Supporting Declaration, **Exhibit B**.

The Court finds that the parties' contract contained an attorneys' fees clause, entitling Plaintiff to recover attorneys' fees as the prevailing party in this action.

A party seeking an award of attorneys' fees as a prevailing party must present evidence of the time spent and the hourly rate of each attorney. *Copenbarger v. Morris Cerullo World Evangelism, Inc.* (2018) 29 Cal.App.5th 1, 14 ("*Copenbarger*"); see CJER Civ. Pro.—Trial, § 16.82. This party has the burden to show the reasonableness of the attorneys' fees sought. *Copenbarger*, *supra*, 29 Cal.App.5th at 14 (party seeking fees bears the burden of showing that the requested fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount.

The evidence proffered by Plaintiff fails to carry its burden of proof as to the reasonableness of the attorneys' fees sought.

The Supporting Declaration contains only a cursory reference to Plaintiff's counsel's hourly rate and a total figure of $800:

4. Plaintiff's counsel charges a reasonable hourly rate of $200.00 per hour which is customary and very reasonable among attorneys practicing law in Southern California. Thus, Four multiplied by $200.00 equals $800.00, which Plaintiff requests as reasonable attorney fees

See Supporting Declaration, ¶4.

The reference to "Four" presumably refers to four (4) hours of attorney work incurred in connection with the litigation, although the declaration does not actually state as much. Even granting a liberal reading of the Supporting Declaration, however, the declaration does not even purport to describe the nature and extent of such legal services, even in broad terms. Nor does the declaration attach any billing statements, invoices or other time summaries, as is typical in such motions.

The Court cannot and does not conclude that the claimed attorneys' fees were reasonable and necessary to this litigation given the paucity of evidence.

<u>Disposition</u>

The Court finds and orders as follows:

1. The Motion for Fees is DENIED.
2. The Court shall enter the order after hearing.

3. 9:00 AM CASE NUMBER: L24-00971
CASE NAME: DISCOVER BANK VS. TRISHA ICKES
***HEARING ON MOTION IN RE: TO ENTER JUDGMENT PURSUANT TO CCP 664.6**
FILED BY: DISCOVER BANK
****TENTATIVE RULING:****

Plaintiff Discover Bank ("Plaintiff") filed a Motion to Enter Judgment on October 21, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on January 6, 2026.

Background

The parties entered into that certain settlement agreement filed on October 25, 2024 (the "Settlement Agreement"), the terms of which included payment by the defendant Trisha Ickes ("Defendant") in the amount of $3,612.34, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Declaration of Plaintiff's Counsel filed October 21, 2025 ("Supporting Declaration"), ¶5 and **Exhibit A** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the principal amount of **$**3,612.34 **plus costs**, less credits for payments made, in the event of a default. *Id*., **Exhibit A,** ¶6.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶7. No notice or opportunity to cure is required under Settlement Agreement. Settlement Agreement, ¶6.

After credit for amounts paid, there remains $2,227.34 due and owing, plus costs of $297.61. See Supporting Declaration, ¶7; see also Memorandum of Costs filed October 21, 2025.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion.
2. The Court finds that Defendant is in default of the Settlement Agreement.
3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of $2,227.34, plus costs of $297.61, for a total judgment of $2,524.95.
4. Plaintiff's submitted form of order and/or money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.

4. 9:00 AM CASE NUMBER: L25-00027
CASE NAME: CROWN ASSET MANAGEMENT LLC VS. JESSICA FRANKLIN
***HEARING ON MOTION IN RE: TO DISMISS**
FILED BY: FRANKLIN, JESSICA
****TENTATIVE RULING:****

Defendant Jessica Franklin ("Defendant") filed a Motion to Dismiss on November 3, 2025 (the "Motion to Dismiss"). The Motion to Dismiss was set for hearing on January 6, 2026. No opposition to the motion has been filed.

Background

Plaintiff Crown Asset Management, LLC ("Plaintiff") filed its Complaint against Defendant on January 2, 2025. Defendant filed an Answer on February 27, 2025 (the "Answer").

Analysis

1. Lack of Adequate Notice of the Hearing

Defendant's motion was signed on October 27, 2025 and filed by the clerk on November 3, 2025. Because the motion, as submitted, did not have an assigned hearing date, time and department, that information was stamped on the caption page by the clerk at the time of filing. However, the moving party's Proof of Service reflects that the motion papers were served on October 27, 2025 before the hearing information was given by the clerk of the Court. See Proof of Service filed on November 3, 2025.

In such circumstances, a moving party will typically prepare and serve an amended notice of motion to ensure that the opposing party has received proper notice of the date, time and department for the hearing of the motion. No amended notice of motion appears on the docket. No other pleadings were filed by the moving party Defendant reflecting the giving of proper notice of the motion hearing information to the other party.

For this reason alone, the Court would deny the motion.

2. Contentions regarding the Merits

Even if adequate notice had been given, the Court would deny the motion.

Defendant seeks to dismiss the Complaint on two grounds. First, Defendant contends that Plaintiff's claims are barred by the statute of limitations. The second ground relied upon by Defendant is that Plaintiff has not established legal standing because "Plaintiff has yet to demonstrate that it is the lawful owner or assignee of the debt."

First, Defendant's contentions are procedurally improper. If the argument is that the allegations of the Complaint are insufficient to state a cause of action and/or are barred by the statute of limitations on its face, then the proper procedural mechanism to raise such issues would have been by a demurrer. Defendant has already filed an Answer and the time for filing of a demurrer is long since past. Code Civ. Proc. § 430.40(a) ("A person against whom a complaint or cross-complaint has been filed may, within 30 days after service of the complaint or cross-complaint, demur to the complaint or cross-complaint."); see CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) ("CJER Civ. Pro.—Before Trial"), § 12.9.

Second, if Defendant seeks to challenge whether Plaintiff can prove its claims or if they are barred based on evidence beyond the pleadings, then there are a number of procedures available to a defendant to seek a pre-trial determination of such matters, such as a motion for summary judgment. A motion to dismiss in this fashion is not one of them.

Third, even if the Court could somehow reach the merits of Defendant's Motion to Dismiss, Defendant has not shown that Plaintiff's claims must be dismissed. By Defendant's own admission, Plaintiff filed suit within the claimed statute of limitations deadline. That the case may take longer to ultimately be adjudicated has nothing to do with the running of a statute of limitations. The statute of limitations is a law that sets the maximum amount of time within which legal proceedings may be *initiated*. See *Shalabi v. City of Fontana* (2021) 11 Cal.5th 842, 843. As to Defendant's contentions regarding Plaintiff's legal standing, Plaintiff has alleged that it is a debt buyer and the sole owner/assignee of the subject account and right to pursue Defendant with respect to any obligations thereunder. See Complaint, ¶9. Whether that is true or not cannot be adjudicated by a motion to dismiss.

Disposition

The Court finds and orders as follows:

1. The Motion to Dismiss is DENIED.
2. The Court shall issue the order.

5. 9:00 AM CASE NUMBER: L25-00802
CASE NAME: CITIBANK, N.A. VS. SANDEEP THIARA
HEARING IN RE: MOTION TO DISMISS
FILED BY: THIARA, SANDEEP
****TENTATIVE RULING:****

Defendant Sandeep Thiara ("Defendant") filed a Motion to Dismiss on November 6, 2025 (the "Motion to Dismiss"). The Motion to Dismiss was set for hearing on January 6, 2026. The motion is opposed.

Background

Plaintiff Citibank, N.A. ("Plaintiff") filed its Complaint against Defendant on January 22, 2025. Defendant filed an Answer on April 14, 2025 (the "Answer").

Analysis

1. Defendant is Not Entitled to Dismissal of the Complaint Based on Defendant's Unsupported Contentions Regarding the Merits of Plaintiff's Claims

Defendant seeks to dismiss the Complaint on several grounds.

Defendant contends that Plaintiff cannot prevail based on various asserted substantive shortcomings, including the assertion that the amount claimed is not owed because Plaintiff "issued a credit on July 12, 2023 in the full amount of $10,400.00." Defendant makes assertions about other things, such as Plaintiff failing to fulfill its obligations under the subject agreement.

Defendant's contentions are procedurally improper. If Defendant seeks to challenge whether Plaintiff can prove its claims or if they are barred based on evidence beyond the pleadings, then there are a number of procedures available to a defendant to seek a pre-trial determination of such matters, such as a motion for summary judgment. A motion to dismiss in this fashion is not one of them.

Defendant's motion relies on assertions of facts* that, ordinarily, must be adjudicated through a contested trial. Again, if no material dispute of facts exists such that Defendant is entitled to judgment as a matter of law, the proper procedural mechanism would be a motion for summary judgment or summary adjudication.

*As the Opposition points out, to the extent that factual assertions are made in the moving papers, they are wholly unsupported by a proper declaration under penalty of perjury and therefore are not evidence at all.

Disposition

The Court finds and orders as follows:

1. The Motion to Dismiss is DENIED.
2. The Court shall issue the order.

6. 9:00 AM CASE NUMBER: L25-01108
CASE NAME: BANK OF AMERICA N.A. VS. OSCAR VALLADARES ROMERO
***HEARING ON MOTION IN RE: FOR ORDER THAT MATTERS IN REQ FOR ADMISS TRUTH OF FACTS BE DEEMED ADMITT**
FILED BY: BANK OF AMERICA N.A.
****TENTATIVE RULING:****

Plaintiff Bank of America, N.A. ("Plaintiff") filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted on October 14, 2025 (the "Motion to Deem Admissions"). The Motion to Deem Admissions was set for hearing on January 6, 2026. Amended motion papers were filed on December 4, 2025, with amended notice of the hearing information. The motion is unopposed.

Background

Plaintiff served Defendant Oscar V. Romero ("Defendant") with a Requests for Admission (Set One). See Declaration of Gregory Parks filed December 4, 2025 as part of Motion to

Deem Admissions (“Supporting Declaration”), ¶2 and **Exhibit 1** thereto (the “RFAs”). The RFAs were served on June 13, 2025 by mail. *Id*. at ¶2 and **Exhibit 1** [attached Proof of Service dated June 13, 2025 (the “Proof of Service”)].

With a five calendar day extension for service of the RFAs by mail, the responses were due to be served on or before July 18, 2025 (30 days from and after June 13, 2025 was July 13, 2025 and five calendar days thereafter fell on July 18, 2025). No responses were received by that deadline or through the time of the filing of the motion. See *id*. at ¶3.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b). The propounding party may also seek the imposition of monetary sanctions. *Id*. There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings as to the discovery requests at issue:

1. Defendant was duly served with the subject RFAs.
2. No timely response was made to the RFAs by Defendant.
3. No opposition or other responsive pleadings by Defendant have been filed with the Court.

Sanctions

Plaintiff does not seek imposition of sanctions.

Disposition

The Court further finds and orders as follows:

1. The Motion to Deem Admissions is GRANTED.
2. The truth of the facts recited in Attachment 1, Nos. 1 through 8, to RFA No. 1 are

DEEMED ADMITTED by Defendant.

3. The genuineness of the documents attached to the RFAs (referenced as the "Terms and Conditions" and the "billing statement"), pursuant to RFA No. 2, is DEEMED ADMITTED by Defendant.

4. A proposed form of order was lodged with the Court which the Court shall execute and enter.

7. 9:00 AM CASE NUMBER: L25-04056
CASE NAME: TD BANK USA, N.A. VS. TAHAYA GRANT
HEARING IN RE: MOTION TO VACATE JUDGMENT
FILED BY:
TENTATIVE RULING:*

Defendant and Judgment Tahaya Grant ("Defendant") filed a Motion to Vacate Judgment on November 17, 2025 seeking to vacate the default and default judgment previously entered herein ("Motion to Vacate"). The Motion to Vacate was set for hearing on January 6, 2025. No opposition has been filed.

Defendant's motion was signed on November 13, 2025 and filed by the clerk on November 17, 2025. Because the motion, as submitted, did not have an assigned hearing date, time and department, that information was stamped on the caption page by the clerk at the time of filing. However, the moving party's Proof of Service reflects that the motion papers were served on November 13, 2025 before the hearing information was given by the clerk of the Court. See Proof of Service reflecting service of the Motion to Vacate filed as part of the moving papers on November 17, 2025.

In such circumstances, a moving party will typically prepare and serve an amended notice of motion to ensure that the opposing party has received proper notice of the date, time and department for the hearing of the motion. No amended notice of motion appears on the docket. No other pleadings were filed by the moving party Defendant reflecting the giving of proper notice of the motion hearing information to the other party.

Disposition

The Court finds and orders as follows:

1. **Continued Hearing Date on Motion to Vacate.** In its discretion, the Court hereby continues the matter to **February 10, 2026**, **9:00 a.m.** in **Department 14** of the Court to ensure that notice of the hearing has properly been given to the Plaintiff. Defendant shall file and serve an amended notice of the motion **on or before January 9, 2026**.

8. 9:00 AM CASE NUMBER: L25-08588
CASE NAME: WELLS FARGO BANK, N.A. VS. MAELVIN HILARIO
HEARING IN RE: MOTION AND MOTION TO COMPEL ARBITRATION AND STAY PROCEEDING
FILED BY: HILARIO, MAELVIN
TENTATIVE RULING:

Defendant Maelvin Hilario ("Defendant") filed a Motion to Compel Arbitration and Stay Proceeding on November 7, 2025 (the "Arbitration Motion"). The Arbitration Motion was set for hearing on January 6, 2026.

Plaintiff filed an Opposition on December 19, 2025.

A Reply was filed by Defendant on December 24, 2025.

Background

Contractual arbitration, also called private or nonjudicial arbitration, is a procedure for resolving disputes that arise from the parties' agreement. See CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2022) ("CJER Civ. Proc. before Trial"), § 3.37. Arbitration involves the waiver of the right to a jury trial and generally involves limits on the scope of judicial review of an arbitration decision. *Id*.

Code of Civil Procedure section 1281 provides that an arbitration agreement must be in writing to be valid and enforceable. Code Civ. Proc. § 1281; see CJER Civ. Proc. before Trial, § 3.37. Absent certain exceptions, **arbitration must be compelled where it is shown that a written agreement to arbitrate exists, there is a controversy between the parties that is subject to that agreement, and the other party has refused to arbitrate.** Code Civ. Proc. § 1281.2; see *Ashburn v. AIG Financial Advisors, Inc.* (2015) 234 Cal.App.4th 79, 96.

A petition to compel arbitration is heard "in a summary way in the manner ... provided by law for the making and hearing of motions." Code Civ. Proc. § 1290.2; see *Ashburn v. AIG Financial Advisors, Inc.*, *supra*, 234 Cal.App.4th at 96. A party is generally not entitled to an evidentiary hearing with live witness testimony, although the Court has discretion to conduct such a hearing; for example, where there are sharply conflicting factual accounts requiring the hearing of such testimony. *Id*.

The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. *Ashburn v. AIG Financial Advisors, Inc.*, *supra*, 234 Cal.App.4th at 96, quoting *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.

The Federal Arbitration Act (9 U.S.C. § 1 *et seq*.) ("FAA") applies to agreements involving interstate commerce. See *Gamma Eta Chapter of Pi Kappa Alpha v. Helvey* (2020) 44 Cal.App.5th 1090, 1098. Where no party raises the issue of interstate commerce or applicability of the FAA, the court applies California law. *Id*.

Analysis

Defendant's motion contends that the parties' contract contains "an arbitration clause allowing either party to elect arbitration…" See Declaration of Maelvin Hilario attached as part of Arbitration Motion, p. 6, ¶3.

Although the referenced cardmember agreement with the arbitration clause is not attached to the motion papers, Plaintiff's Opposition concedes that the subject credit card agreement contains an arbitration clause and attaches a copy. See Opposition, p. 2 and **Exhibit A** thereto (Complaint with attached "Consumer Credit Card Customer Agreement").

Accordingly, the Court finds that a written agreement to arbitrate exists, as set forth in the Consumer Credit Card Customer Agreement (the "Arbitration Agreement"). See Arbitration Agreement , p. 17, ¶6. The Arbitration Agreement is governed by the FAA.* *Id*. ("This Arbitration Agreement and any resulting arbitration are governed by the provisions of the Federal Arbitration Act").

The Court further finds that there is a controversy between the parties that is subject to the Arbitration Agreement. It is evident that the claims at issue in this action, as pled in the operative Complaint by Plaintiff, are within the scope of and subject to that agreement.

The Court has considered and rejects Plaintiff's contention that the motion should be denied because Defendant waived the right to arbitrate the pending dispute.

To establish such a waiver, the party opposing enforcement of the arbitration clause must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it. *Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 584; see CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) ("CJER Civ. Pro.—Before Trial"), § 3.49. The same standard applies to determining waiver under the FAA as under California law. *Id*.

The courts have identified the following factors as relevant for consideration: (1) whether the party's actions are inconsistent with the right to arbitrate; (2) whether "the litigation machinery has been substantially invoke" and the parties "were well into preparation of a lawsuit" before the party notified the opposing party of an intent to arbitrate; (3) whether a party either requested arbitration enforcement close to the trial date or delayed for a long period before seeking a stay; (4) whether a defendant seeking arbitration filed a counterclaim without asking for a stay of the proceedings; (5) "whether important intervening steps (e.g., taking advantage of judicial discovery procedures not available in arbitration) had taken place;" and (6) whether the delay "affected, misled, or prejudiced the opposing party." *Spracher v. Paul M. Zagaris, Inc.* (2019) 39 Cal.App.5th 1135, 1138

The evidence shows here that Defendant moved promptly to seek to compel arbitration by this motion within a few months of filing Defendant's Answer to the Complaint, which Answer expressly raised and referenced electing to exercise the right to arbitration:

Sixth Affirmative Defense: (Arbitration)

The applicable credit card agreement contains a binding Arbitration Clause. I elect arbitration and reserve the right to move this court to compel arbitration under the Federal Arbitration Act.

See Answer filed September 10, 2025.

Indeed, this written election was more than adequate to constitute a demand for arbitration under the Arbitration Agreement. See Arbitration Agreement, p. 17, ¶6 (arbitration may be initiated "…upon demand by either you or the Bank…").

Plaintiff has not shown that it was somehow misled or lulled into engaging in substantial court litigation only to have arbitration sought at the last minute.

Based on the foregoing and the totality of the other evidence, the Court finds that Plaintiff has failed to carry its burden of proving by clear and convincing evidence that Defendant knew of the contractual right to arbitration and intentionally relinquished or abandoned it.

The Court further finds that Plaintiff has failed or refused to arbitrate in accordance with the Arbitration Agreement. Plaintiff's filing of a lawsuit and its opposition to the pending motion is sufficient to show refusal or failure to arbitrate the controversy.

Lastly, the Court concludes that this matter ought to be stayed pending the outcome of the arbitration. See Code Civ. Proc. § 1281.4.

*Although an arbitration agreement may provide that the arbitration is to be governed by the FAA, generally the California Arbitration Act governs arbitral procedures brought in California courts. *Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 922. There has been no showing of some FAA specific limitation relevant to enforcement of the subject Arbitration Agreement in this case. In determining the rights of parties to enforce an arbitration agreement within the FAA's scope, courts apply state contract law while giving due regard to the federal policy favoring arbitration. *Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC*, *supra*, 55 Cal.4th at 236.

<u>Disposition</u>

The Court finds and orders as follows:

1. The Arbitration Motion is GRANTED.
2. **Defendant, as the party electing arbitration, shall initiate the arbitration before the American Arbitration Association (AAA) unless the parties agree to a different forum pursuant to the terms and condition of the Arbitration Agreement (the "Arbitration Service Provider").** Defendant shall initiate the arbitration process in accordance with the Arbitration Agreement and any applicable rules of the Arbitration Service Provider.
3. The pending action is STAYED until an arbitration is completed pursuant to the

terms and conditions of the Arbitration Agreement or further order of the Court.

4. Lastly, the Court shall set the matter for a Case Management Conference (CMC) in 180 days, regarding the status of arbitration completion, and give notice of such CMC to all parties.

9. 9:00 AM CASE NUMBER: L25-10329
CASE NAME: ODK CAPITAL, LLC VS. ASHLEY ZIEGLER
HEARING IN RE: MOTION TO COMPEL
FILED BY:
<u>*TENTATIVE RULING:*</u>

Defendant Ashley Ziegler ("Defendant") filed a Motion to Compel Arbitration and Stay Proceedings on November 12, 2025 (the "Arbitration Motion"). The Arbitration Motion was set for hearing on January 6, 2026. The motion is unopposed.

<u>Background</u>

Contractual arbitration, also called private or nonjudicial arbitration, is a procedure for resolving disputes that arise from the parties' agreement. See CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2022) ("CJER Civ. Proc. before Trial"), § 3.37. Arbitration involves the waiver of the right to a jury trial and generally involves limits on the scope of judicial review of an arbitration decision. *Id*.

Code of Civil Procedure section 1281 provides that an arbitration agreement must be in writing to be valid and enforceable. Code Civ. Proc. § 1281; see CJER Civ. Proc. before Trial, § 3.37. Absent certain exceptions, **arbitration must be compelled where it is shown that a written agreement to arbitrate exists, there is a controversy between the parties that is subject to that agreement, and the other party has refused to arbitrate.** Code Civ. Proc. § 1281.2; see *Ashburn v. AIG Financial Advisors, Inc.* (2015) 234 Cal.App.4th 79, 96.

A petition to compel arbitration is heard "in a summary way in the manner ... provided by law for the making and hearing of motions." Code Civ. Proc. § 1290.2; see *Ashburn v. AIG Financial Advisors, Inc.*, *supra*, 234 Cal.App.4th at 96. A party is generally not entitled to an evidentiary hearing with live witness testimony, although the Court has discretion to conduct such a hearing; for example, where there are sharply conflicting factual accounts requiring the hearing of such testimony. *Id*.

The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. *Ashburn v. AIG Financial Advisors, Inc.*, *supra*, 234 Cal.App.4th at 96, quoting *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.

The Federal Arbitration Act (9 U.S.C. § 1 *et seq*.) ("FAA") applies to agreements involving interstate commerce. See *Gamma Eta Chapter of Pi Kappa Alpha v. Helvey* (2020) 44 Cal.App.5th 1090, 1098. Where no party raises the issue of interstate commerce or applicability of the FAA, the court applies California law. *Id*.

<u>Analysis</u>

Defendant's motion contends that the Personal Guaranty upon which Defendant has been sued in this action is subject to an arbitration clause in the subject "Business Loan and Security Agreement and Guaranty." See Declaration of Ashley Ziegler ("Ziegler Decl.") filed November 12, 2025, ¶¶2-3 and **Exhibit A** thereto.

The Business Loan and Security Agreement contains an arbitration clause:

> 33. ARBITRATION AGREEMENT AND CLASS ACTION WAIVER. THE PARTIES AGREE THAT AT THE ELECTION OF ANY PARTY, ALL CLAIMS BETWEEN BORROWER, GUARANTORS, LENDER, AND SERVICER SHALL BE RESOLVED THROUGH MANDATORY BINDING INDIVIDUAL ARBITRATION PURSUANT TO THIS SECTION.

Business Loan and Security Agreement, ¶33, Ziegler Decl., **Exhibit A** (the "Arbitration Agreement"). Under the terms of this Arbitration Agreement, it expressly encompasses "GUARANTORS…" *Id*. The Arbitration Agreement also encompasses the claims against the named corporate defendant SF Hound Lounge, Inc. ("SF Hound Lounge, Inc."). *Id*.

Accordingly, the Court finds that a written agreement to arbitrate exists, as set forth in the Arbitration Agreement. The Arbitration Agreement is governed by the FAA.* Arbitration Agreement, ¶33(H). ("This arbitration section is governed by the Federal Arbitration Act…").

The Court further finds that there is a controversy between the parties that is subject to the Arbitration Agreement. It is evident that the claims at issue in this action, as pled in the operative Complaint by Plaintiff, are within the scope of and subject to that agreement.

Defendant's present motion is sufficient to constitute an election and demand for arbitration under the Arbitration Agreement. See Arbitration Agreement, ¶33.C (arbitration may be initiated "…at the election of any party…"); see also *id*. at ¶33.G.

The Court finds that Plaintiff has failed or refused to arbitrate in accordance with the Arbitration Agreement. Plaintiff's filing of a lawsuit and non-compliance following the filing of the pending motion is sufficient to show refusal or failure to arbitrate the controversy.

Lastly, the Court concludes that this matter ought to be stayed pending the outcome of the arbitration. See Code Civ. Proc. § 1281.4.

*Although the Arbitration Agreement provides that the arbitration is to be governed by the FAA and "… the extent it is applicable, by Utah law[,]" generally the California Arbitration Act governs arbitral procedures brought in California courts. See *Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 922. There has been no showing of some specific limitation or provision of the FAA or Utah law relevant to enforcement of the subject Arbitration Agreement in this case. Therefore, the Court need not consider whether and to what extent the FAA or Utah law applies for purposes of deciding this motion. In determining the rights of parties to enforce an arbitration agreement within the FAA's scope, courts apply state contract law while giving due regard to the federal policy favoring arbitration. *Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.

Disposition

The Court finds and orders as follows:

1. The Arbitration Motion is GRANTED.
2. **Defendant, as the party electing arbitration, shall initiate the arbitration before JAMS (the "Arbitration Service Provider").** Defendant shall initiate the arbitration process in accordance with the Arbitration Agreement and any applicable rules of the Arbitration Service Provider.
3. The pending action is STAYED until an arbitration is completed pursuant to the terms and conditions of the Arbitration Agreement or further order of the Court.
4. The scope of the arbitration shall include all named defendants, including Defendant and SF Hound Lounge, Inc.
5. Lastly, the Court shall set the matter for a Case Management Conference (CMC) in 180 days, regarding the status of arbitration completion, and give notice of such CMC to all parties.

10. 9:00 AM CASE NUMBER: L25-12315
CASE NAME: BRIGGSYBUNCH LLC VS. AIRCOM MECHANICAL, INC
HEARING IN RE: VERIFIED PETITION TO EXPUNGE MECH LIEN
FILED BY: BRIGGSYBUNCH LLC
****TENTATIVE RULING:****

Petitioner BriggsyBunch LLC ("Petitioner") filed a Verified Petition to Expunge Mechanic's Lien pursuant to Civil Code sections 8480 and 8484 on October 27, 2025 (the "Petition"). That Petition was set for a hearing date of January 6, 2026.

A Proof of Service of Summons was filed on December 15, 2025 reflecting service of the Summons, Petition and related papers on December 12, 2025 on respondent AirCom Mechanical, Inc. ("Respondent").

Background

Petitioner's Petition seeks the release of a Mechanics' Lien recorded on the subject real property commonly known as 5444 Clayton Road, Concord, California (the "Subject Real Property") on or about February 28, 2025 (the "Mechanics' Lien") because Petitioner contends that Respondent failed to bring an action to enforce the lien within 90 days after the recordation of the claim of lien.

Analysis

The owner of property or the owner of any interest in property subject to a claim of lien may petition the court for an order to release the property from the claim of lien if the claimant has not commenced an action to enforce the lien within the time provided in Section 8460. Civ. Code § 8480. Such petition is set for hearing within thirty (30) days by the Court. *Id*. at § 8486(a).

The petitioner must serve a copy of the petition and a notice of hearing on the claimant at least 15 days before the hearing. *Id*. at § 8486(b). Service shall be made in the same manner as service of summons, or by certified or registered mail, postage prepaid, return receipt requested, addressed to the claimant as provided in Section 8108. *Id*.

At the hearing both (1) the petition and (2) the issue of compliance with the service and date for hearing requirements of this article are deemed controverted by the claimant. *Id*. at § 8488(a). The petitioner has the initial burden of producing evidence on those matters. *Id*. The petitioner has the burden of proof as to the issue of compliance with the service and date for hearing requirements of the statute. *Id*. This showing may be made by a verified petition pursuant to Civil Code section 8484. See Civ. Code § 8484 ("A petition for a release order shall be verified…"). The claimant has the burden of proof as to the validity of the lien. *Id*.

If judgment is in favor of the petitioner, the court shall order the property released from the claim of lien. *Id*. at § 8488(b). The prevailing party is entitled to reasonable attorney's fees. *Id*. at § 8488(c).

As set forth in the verified Petition, Respondent recorded the Mechanics' Lien on the Subject Real Property on February 28, 2025. Petition, ¶4 and **Exhibit A** thereto. No action to enforce the Mechanics' Lien is pending. *Id*. at ¶11.

In addition, Petitioner has proffered the supporting declaration of its counsel, Nabeal Sunna. See Declaration of Nabeal Sunna filed October 27, 2025 ("Sunna Decl."). Despite a diligent search, Petitioner's counsel has not found any lawsuit filed by Respondent to foreclose on the Mechanics' Lien. *Id*. at ¶3.

Petitioner has carried its burden to proffer evidence to establish a prima facie basis for Petitioner's entitlement to an order, pursuant to Pursuant to Civil Code sections 8480 and 8490, to release the subject real property from the claim of lien because the claimant has not commenced an action to enforce the lien within the statutory time period.

No opposition has been filed by Respondent.

Petitioner seeks an award of reasonable attorneys' fees in the total amount of $2,880.00.

The Court finds that Petitioner is the prevailing parties entitled to recover attorneys' fees, as well as its costs. The request for fees and costs is supported by Petitioner's counsel's declaration. See Sunna Decl., ¶¶1-4. The declaration includes a summary of the legal services rendered in the litigation of the matter and the attorney's hourly rate ($480.00 per hour). *Id*. at ¶4. The Court has considered the 5.0 hours of legal work described and is familiar with the scope of the pleadings prepared and filed. The Court finds that the fees total $2,400.00 (5.0 hours multiplied by $480.00 per hour) and that such fees were necessary and reasonable given the nature and scope of the issues in the case. The difference ($480) as compared to the amount requested ($2,880) is one additional hour of estimated time to attend the hearing. See at ¶4. Given this tentative ruling and that it is unlikely that Petitioner's attorney need appear for a contested hearing, the Court will fix the attorneys' fees at $2,400.00.

Disposition

The Court finds and orders as follows:

1. Petition is GRANTED.
2. The Subject Property, commonly known as 5444 Clayton Road, Concord, California (120-133-002) is released from the subject Mechanic's Lien of respondent AirCom Mechanical, Inc., upon the recordation of a certified copy of this decree.
3. The Mechanics Lien was recorded on **February 28, 2025** in the Contra Costa County Clerk-Recorder's Office as Instrument No. **DOC-2025-0018900**.
4. Pursuant to Civil Code section 8490, subsections (b) and (c), this order and any judgment thereon is equivalent to cancellation of the claim of lien and its removal from the record and constitutes a recordable instrument.
5. Petitioner shall recover from Respondent reasonable attorneys' fees in the amount of $2,400.00.
6. Any recoverable costs may be sought by a timely filed memorandum of costs or otherwise in accordance with applicable law.
7. The Court shall issue the order after hearing.
8. Petitioner to prepare a final Judgment on the Petition. Such judgment shall include the legal description of the Subject Property pursuant to Civil Code section 8490, subsection (a)(4).

11. 9:00 AM CASE NUMBER: MSL19-00693
CASE NAME: MIDLAND FUNDING VS MASON
***HEARING ON MOTION IN RE: SPECIALLY APPEARING DEFENDANT DEMETRIA MASON'S NOTICE OF MOTION AND MOTION TO QUASH SUMMONS AND DISMISS ACTION WITH PREJUDICE**
FILED BY: MASON, DEMETRIA
<u>*TENTATIVE RULING:*</u>

Defendant Demetria Mason ("Defendant") filed a Motion to Dismiss and Motion to Quash Summons and Dismiss Action with Prejudice on October 16, 2025 (the "Motion to Dismiss"). The Motion to Dismiss was set for hearing on January 6, 2026. No opposition has been filed to date.

Background

Plaintiff Midland Funding LLC ("Plaintiff") filed its Complaint against Defendant on January 28, 2019. Defendant filed an Answer on April 14, 2025 (the "Answer"). A default was entered against Defendant on July 6, 2020 (the "Default").

Thereafter, a request for entry of a default judgment was submitted to the Court and a default judgment was entered on September 4, 2020 (the "Default Judgment").

The Court recently issued an order setting aside the Default and Default Judgment following a motion brought by the Defendant.

Defendant has now filed the present motion.

Analysis

Defendant appears to be seeking to quash the prior attempted service purported done in February 2019. It is not clear to the Court why a motion to quash is necessary at this stage, as the Court's prior order already determined that such service was invalid. See Order dated September 16, 2025. The Court's made clear that the next step would be for Plaintiff to complete new service of process. *Id*. at p. 4., ¶6.

Defendant also seeks an order dismissing the case pursuant to Code of Civil Procedure section 583.210. Section 583.210 provides:

> The summons and complaint shall be served upon a defendant within three years after the action is commenced against the defendant. For the purpose of this subdivision, an action is commenced at the time the complaint is filed.

Code Civ. Proc. § 583.210(a).

Code of Civil Procedure section 583.250 provides that "[i]f service is not made in an action within the time prescribed in this article: [¶] (2) [t]he action shall be dismissed by the court on its own motion or on motion of any person interested in the action,..." See *id*. at § 583.250(a). This provision is mandatory, except as provided by statute. *Id*. at § 583.250(b).

Code of Civil Procedure section 583.240 sets forth various circumstances that may toll or extend the running of the statutory time period. *Id*. at § 583.240.

Whether any of the circumstances apply here has not been briefed by Plaintiff, as no Opposition has been filed.

It is not clear to the Court that the moving papers have been served, as there is no Proof of Service on file.

Disposition

The Court finds and orders as follows:

1. **PARTIES TO APPEAR** to address service of the pending motion and a continued hearing date.

12. 9:00 AM CASE NUMBER: MSL21-00016
CASE NAME: DISCOVER VS. BISI
***HEARING ON MOTION IN RE: TO VACATE JUDGMENT AND ENTER DISMISSAL**
FILED BY: DISCOVER BANK
<u>*TENTATIVE RULING:*</u>

Plaintiff and judgment creditor Discover Bank ("Plaintiff") filed a Motion to Vacate Judgment and Enter Dismissal on October 21, 2025 (the "Motion to Vacate Judgment"). The Motion to Vacate Judgment was set for hearing on January 6, 2026. The motion is unopposed.

<u>Background</u>

Plaintiff filed a Complaint on January 4, 2021. A default was entered on September 7, 2021 (the "Default") against defendant and judgment debtor Louis Bisi ("Defendant"). Subsequently, a default judgment in the total amount of $6,121.74 was entered on June 24, 2022 (the "Default Judgment").

<u>Analysis</u>

The Court has authority to vacate a void default judgment pursuant to Code of Civil Procedure section 473(d). See Code Civ. Proc. § 473(d) ("The court … may, on motion of either party after notice to the other party, set aside any void judgment or order."); see also *Sindler v. Brennan* (2003) 105 Cal.App.4th 1350, 1353 [a judgment void on its face because rendered when the court lacked personal or subject matter jurisdiction or exceeded its jurisdiction in granting relief which the court had no power to grant is subject to collateral attack at any time and may be set aside under Code of Civil Procedure section 473, subdivision (d)].

In addition, a judgment may be set aside by a court if it has been established that extrinsic factors have prevented one party to the litigation from presenting their case. *In re Marriage of Park* (1980) 27 Cal.3d 337, 342. The grounds for such equitable relief are commonly stated as being extrinsic fraud or mistake. *Id*. Those terms are given a broad meaning and tend to encompass almost any set of extrinsic circumstances which deprive a party of a fair adversary hearing. *Id*.; see also *Aldabe v. Aldabe* (1962) 209 Cal.App.2d 453, 474 ("Fraud or mistake is extrinsic when it deprives the unsuccessful party of an opportunity to present his case to the court.") quoting *Westphal v. Westphal* (1942) 20 Cal.2d 393, 397.

Plaintiff's motion is based on the judgment creditor's own application and request. See Declaration of Plaintiff's Counsel filed October 21, 2025, ¶2 *et seq*. Plaintiff requests that the Court vacate the Default Judgment entered and that the case be dismissed without prejudice. *Id*. at ¶3.

The Court construes these representations as an implied concession that there is a defect underlying the judgment such that Plaintiff concedes it is void or voidable and should not be maintained or enforced or that there exist other extrinsic factors justifying the setting aside of the subject Default Judgment in the interests of justice.

Disposition

The Court finds and orders as follows:

1. The Motion to Vacate Judgment is GRANTED.
2. The Default Judgment is hereby VACATED and SET ASIDE.
3. The case is hereby DISMISSED, WITHOUT PREJUDICE.
4. A proposed form of order was lodged with the Court which the Court shall execute and enter.